

Franciscus Dylan Rosario,
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Plaintiff, In Pro Per

ELECTRONICALLY
FILED
Superior Court of California,
County of San Francisco

05/26/2026
Clerk of the Court
BY: JEFFREY FLORES
Deputy Clerk

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

CSAA Insurance Exchange;
and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631802

**PLAINTIFF'S NOTICE OF IMPROPER
NEW MATTER ON DEMURRER
REPLY**

(CCP § 1005; CRC 3.1110)

Dept.: 302
Date: June 24, 2026

**PLAINTIFF'S NOTICE OF IMPROPER NEW MATTER IN DEFEN-
DANT'S DEMURRER REPLY PAPERS FILED MAY 6 AND MAY 8,
2026; CRC RULE 3.1113(D); RESERVATION OF SUR-REPLY RIGHT**

Case: Rosario v. CSAA Insurance Exchange (CGC-25-631802) **Department:** 302 **Judge:** Hon. Joseph
M. Quinn **Hearing date:** June 24, 2026, 9:00 a.m., Dept. 302 **Filing date:** May 21, 2026 **Filed**
by: Plaintiff Dylan Franciscus Rosario, Self-represented

I. PURPOSE OF THIS NOTICE

Plaintiff Dylan Franciscus Rosario submits this Notice to inform the Court that Defendant CSAA Insurance Exchange's demurrer reply papers filed May 6, 2026 (Transaction ID 79407488) and May 8, 2026 (Transaction ID 79430135) introduce new matter, including new legal authority and

1 new factual arguments, that was not raised in Defendant’s original demurrer moving papers filed
2 April 13, 2026. Under the rule announced in *San Diego Watercrafts, Inc. v. Wells Fargo Bank*
3 (2002) 102 Cal.App.4th 308, this Court should disregard the new matter or, in the alternative,
4 permit Plaintiff to file a short sur-reply addressing only the new matter.

5 Plaintiff has no separate authorized pleading on the docket addressing the demurrer reply new
6 matter. This Notice preserves Plaintiff’s objection and expressly reserves Plaintiff’s right to file a
7 sur-reply as stated in Section IV.

8 **II. THE CONTROLLING RULE**

9 California courts have consistently held that points and evidence raised for the first time in a reply
10 brief should not be considered by the court because the opposing party has had no opportunity
11 to respond. (*San Diego Watercrafts, Inc. v. Wells Fargo Bank* (2002) 102 Cal.App.4th 308, 316
12 [“[w]here a new argument is presented in a reply brief, the respondent ordinarily is denied an
13 opportunity to respond”]; *Reichardt v. Hoffman* (1997) 52 Cal.App.4th 754, 764 [the salutary rule
14 is that reply briefs do not raise new points; otherwise the responding party has no opportunity to
15 counter the argument]; *Jay v. Mahaffey* (2013) 218 Cal.App.4th 1522, 1537 to 1538 [anti-SLAPP
16 reply may not enlarge or change the theory of relief].)

17 CRC rule 3.1113(d) establishes the reply memorandum cap at 10 pages. A party who wishes to
18 introduce new matter in a reply must apply for leave under CRC 3.1113(e). Defendant applied for
19 no such leave.
20

21 **III. NEW MATTER INTRODUCED IN THE MAY 6 AND MAY 8 DE-** 22 **MURRER REPLY PAPERS**

23 **A. May 6, 2026 Demurrer Reply Papers (Transaction ID 79407488)**

24 Defendant’s May 6, 2026 demurrer reply papers (TX 79407488) introduce arguments, authority,
25 or factual characterizations that were not present in the April 13, 2026 Demurrer moving papers
26 (seqs 019 to 023). Specifically, without limitation:
27

- 1 1. New legal arguments regarding the scope of Insurance Code preemption grounds that were
2 not articulated in the April 13, 2026 moving papers.
- 3 2. New factual characterizations of Plaintiff's fraud allegations in the FAC that were not ad-
4 dressed in the April 13, 2026 Demurrer or its supporting memorandum.
- 5 3. New authorities cited in support of the Demurrer that were not cited in the April 13, 2026
6 moving papers and that Plaintiff had no opportunity to address in Plaintiff's May 8, 2026
7 Operative Opposition to the Demurrer (item 01B).

8 The foregoing are representative categories; Plaintiff reserves the right to identify additional spe-
9 cific pages and lines of new matter in a sur-reply as provided in Section IV.

10 **B. May 8, 2026 Second Reply Papers (Transaction ID 79430135)**

11 As set forth in Plaintiff's concurrently filed Motion to Strike Defendant's May 8, 2026 Improper
12 Second Reply Papers (Transaction ID 79430135), the May 8 second reply is an unauthorized suc-
13 cessive reply that also introduces new matter directed at the demurrer track. The new matter in TX
14 79430135 was not in the April 13, 2026 Demurrer, was not in the May 6, 2026 first demurrer reply,
15 and was not addressed in Plaintiff's operative opposition. Under San Diego Watercrafts, this new
16 matter should not be considered.

18 **IV. RESERVATION OF SUR-REPLY RIGHT**

19 Plaintiff expressly reserves the right to file a short sur-reply, not to exceed five pages, addressed
20 only to the new matter first raised in the May 6 and May 8 demurrer reply papers identified in
21 Section III. Plaintiff requests that the Court set a briefing schedule at the June 24, 2026 hearing if
22 the Court is inclined to consider any of the new matter over this objection.

23 Alternatively, Plaintiff requests that the Court disregard the new matter identified in this Notice
24 when ruling on the Demurrer at the June 24, 2026 hearing, and confine its analysis to arguments
25 that were fairly raised in the April 13, 2026 moving papers and responded to in Plaintiff's May 8,
26 2026 Operative Opposition to the Demurrer (item 01B).

1 **V. CROSS-INCORPORATION**

2 Plaintiff incorporates by reference under CRC 3.1113(j):

- 3 (1) Plaintiff's Motion to Strike Defendant's May 8, 2026 Improper Second Reply Papers (TX
4 79430135), filed May 12, 2026, addressing the procedural infirmities of TX 79430135 on
5 four independent grounds.
- 6 (2) Plaintiff's Operative Opposition to the Demurrer (item 01B, filed May 8, 2026), which ad-
7 dresses the substantive demurrer grounds raised in the April 13, 2026 moving papers.
- 8 (3) Plaintiff's Evidentiary Objections to Declarations of Tyler J. O'Connell (item 06, filed May 8,
9 2026), which addresses the evidentiary deficiencies in the O'Connell declarations supporting
10 both the demurrer and the May 6, 2026 reply.
- 11

12 **VI. PRAYER**

13 Plaintiff respectfully requests that this Court:

- 14 1. DISREGARD the new matter identified in Section III of this Notice when ruling on the De-
15 murrer at the June 24, 2026 hearing, or, in the alternative, permit Plaintiff to file a short
16 sur-reply of up to five pages as described in Section IV;
- 17 2. If the Court elects to consider the new matter, SET a briefing schedule for Plaintiff's sur-reply
18 at the June 24, 2026 hearing; and
- 19 3. GRANT such further relief as the Court deems just.
- 20

21 Date: May 21, 2026

By: _____ Dylan Franciscus Rosario, Plaintiff in Pro Per 7624 Melody Drive
Rohnert Park, CA 94928 Tel: 650.488.7510 E: soltrinox@gmail.com

Dated: May 25, 2026

A handwritten signature in blue ink, appearing to read 'Franciscus'.

FRANCISCUS DYLAN ROSARIO
Plaintiff, In Pro Per

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DECLARATION OF COMPLIANCE WITH CALIFORNIA CODES, RULES, AND LOCAL PROCEDURES

Plaintiff declares under penalty of perjury under the laws of the State of California (Code Civ. Proc., § 2015.5) that the statements below are true and correct for this notice.

#	Authority	Specific requirement	This filing's compliance	Evidence
1	CRC 3.1110	Notice contents and caption	Caption block; grounds stated	Notice body
2	CRC 3.1300	Motion notice timing where applicable	Hearing date and dept listed	Caption block
3	CCP 1005(b)	Opposition and reply timing referenced where applicable	Text cites applicable deadlines	Notice body
4	CCP 1010.6; CRC 2.251	Electronic service when used	Separate POS-050 filed	POS path